STANDARD OPERATING PROCEDURE			I-3300
	SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA **GREG LONDON** **SHERIFF**	DATE ISSUED 12/15/08	DATE REVISED **01/14/25**	DATE REVIEWED 02/02/25
		APPROVED: *GREG LONDON*		

CHAPTER TITLE	RESOURCES
CRIMINAL INVESTIGATIONS	**N.R.S. 23-1210, 23-1801-23-1821**
SUBJECT	CROSS REFERENCE
DEATH INVESTIGATIONS	P-3433 CORONER CALLS P-3431 DEATHS P-4810 CRIME SCENE A-7100 EVIDENCE AND PROPERTY

I. Purpose:

The purpose of this policy is to establish the procedures for completing death investigations assigned to the Investigations Division including investigator's role as coroner for other jurisdictions.

II. Policy:

The Sarpy County Sheriff's Office, as designated by the Sarpy County Attorney's Office (N.R.S. 23-1210 and 23-1817), has the authority of the county coroner. Generally, the Sarpy County Road Patrol will be responsible for the initial investigation of deaths which occur within the Sheriff's Office jurisdiction (see P-3431 Deaths) and the Road Patrol Supervisor shall function as the coroner (see P-3433 Coroner Calls). If the death is a homicide, suicide, in-custody death or is questionable, the Investigations Division shall have responsibility for the complete and thorough investigation of the death and shall function as the coroner. If a homicide, suicide, in-custody death or questionable death occurs in Sarpy County, but not within the jurisdiction of the Sheriff's Office, the on-call investigator shall function as the coroner only. The outside jurisdiction may contact the on-call Investigator directly to respond to the death scene for coroner duties.

III. Procedure:

A. Investigations Responsibility-Deaths Occurring Within Sheriff's Office Jurisdiction: The on-call investigator shall generally have the primary responsibility for investigating all homicides, suicides, or questionable deaths that occur within the Sheriff's Office jurisdiction. The on-call investigator shall adhere to the following procedures:

1. The on-call investigator (or an investigator assigned by the Criminal Investigations Unit Supervisor, Investigations Division Assistant Commander or Commander) shall respond to the scene of the death.

a) If the death is an in-custody death and occurs at the Sarpy County Jail, the death of any inmate shall be reported immediately to the facility's medical authority.

2. The assigned investigator shall ensure that the scene is photographed and processed appropriately (see P-4810 Crime Scene). This may include arranging for a crime lab to respond.

3. If the assigned investigator determines the death was not a result of criminal action or suicide, he or she may contact the deceased's physician to determine the cause of death and to determine if the physician will sign the death certificate. Generally, if a physician will sign the death certificate, no further investigation will be necessary.

a) A physician's willingness to sign a death certificate does not supersede the ability of an investigator to order an autopsy of the deceased. The investigator may still order an autopsy if he or she believes it is in the best interest of determining the most accurate cause of death.

4. When the facts of the death are known, the assigned investigator shall notify the ADC and the county attorney as soon as practical.

a) Investigators shall email the death information to the "Coroner" distribution group and the ADC as soon as practical, at the conclusion of the at-scene investigation.

5. If not already completed, the assigned investigator shall be responsible for contacting the deceased's next of kin immediately or as soon as practical. This shall only apply to cases within the Sarpy County Sheriff's Office jurisdiction.

6. The assigned investigator shall make a complete inventory of all items which he or she finds on the person of the deceased. Any items removed shall be placed into evidence if related to the crime or safe keeping (see A-7100 Evidence and Property). The assigned investigator shall also take custody of any other evidentiary items at the scene unless taken by the responding crime lab.

7. The assigned investigator shall arrange for the removal of the body from the scene. The assigned investigator shall complete a body tag and shall seal the body bag prior to the body's removal.

8. The assigned investigator shall make arrangements for an autopsy with a licensed physician qualified in pathology for all cases where the death is questionable or unexplained or the suspected cause of death is any of the following:

a) External violence to the victim.
b) Suicide.
c) Poison including drug overdose.
d) Drowning.
e) Exposure or starvation.
f) All deaths which occur while the deceased was in police custody.
g) Hanging, strangulation, aspiration of foreign matter or asphyxiation.
h) Fire.
i) Industrial accident.
j) All traffic deaths.

9. Only the County Attorney (or his or her representative) may determine an autopsy is not required under the above conditions.

10. The assigned investigator shall attend the autopsy and shall ensure that the body bag is still sealed prior to the examination. The investigator shall ensure any items of evidentiary value discovered during the autopsy (e.g. bullet fragments) are taken into custody. The investigator shall gather any reports (e.g. toxicology) related to the autopsy. The investigator shall also complete a supplementary report regarding the findings of the pathologist.

11. The assigned investigator shall complete a Coroner's Checklist (including autopsy) form and submit this form with the related autopsy reports. The Coroner's Checklist shall be turned into transcription upon returning to the Sheriff's Office from the autopsy.

12. The assigned investigator shall be responsible for coordinating the investigation (under the direction of the Investigations Supervisor, the Assistant Investigations Commander and/or the Investigations Commander), creating an investigation folder, compiling all reports and information, and ensure all tasks are completed.

13. In certain circumstances, the Investigations Commander may waive the attendance of the investigator at the autopsy after having consulted with the County Attorney or his/her designee.

B. Investigations Responsibility-Deaths Occurring Outside Sheriff's Office Jurisdiction: The on-call investigator shall function as the coroner for all homicides, suicides, or questionable deaths that occur outside the Sheriff's Office jurisdiction. The agency with jurisdiction shall have primary responsibility for conducting the investigation, the coroner determines the cause and manner of death. The on-call investigator shall adhere to the following procedures:

1. The on-call investigator (or an investigator assigned by the Investigations Commander) shall respond to the scene of the death.

2. If the assigned investigator determines the death was not a result of criminal action or suicide, he or she may contact the deceased's physician to determine the cause of death and to determine if the physician will sign the death certificate. If a physician will sign the death certificate, any further investigation shall be the responsibility of the agency with jurisdiction.

3. The assigned investigator shall make a complete inventory of all items which he or she finds on the person of the deceased. Any items removed that are related to the crime shall be placed into evidence by the investigating agency. Other property shall be placed into safe keeping by the assigned investigator. Generally, the assigned investigator shall not release any property without consulting the investigating agency.

4. The assigned investigator shall arrange for the removal of the body from the scene. The assigned investigator shall complete a body tag and shall seal the body bag prior to the body's removal.

5. The assigned investigator shall make arrangements for an autopsy with a licensed physician qualified in pathology for all cases where the death is questionable or unexplained or the suspected cause of death is any of the following:

a) External violence to the victim.
b) Suicide.
c) Poison including drug overdose.
d) Drowning.
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f) All deaths which occur while the deceased was in police custody.
g) Hanging, strangulation, aspiration of foreign matter or asphyxiation.
h) Fire.
i) Industrial accident.
j) All traffic deaths.

6. Only the County Attorney (or his or her representative) may determine an autopsy is not required under the above conditions.

7. The assigned investigator shall attend the autopsy and shall ensure that the body bag is still sealed prior to the examination. The investigating agency shall take custody of any items of evidentiary value discovered during the autopsy (e.g. bullet fragments). The investigator shall gather any reports (e.g. toxicology) related to the autopsy. The investigator shall also complete a supplementary report regarding the findings of the pathologist. This report shall be forwarded to the investigating agency as soon as possible.

8. The assigned investigator shall complete a Coroner's Checklist (including autopsy) form and submit this form with the related autopsy reports.

9. In certain circumstances, the Investigations Commander may waive the attendance of the investigator at the autopsy after having consulted with the County Attorney or his/her designee.